



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

November 05, 2021

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 11646
(TWELFTH REVISION)

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the discharge of certain Class 3, Division 6.1 and Class 8 and Class 9 liquids from a DOT Specification drum without removing the drum from the vehicle on which it is transported. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 177.834(h) in that a drum may not be unloaded while on a motor vehicle, except as provided herein; and §§ 172.203(a) and 172.301(c) in that the marking requirements are waived.
5. BASIS: This special permit is based on the application of Baker Petrolite, Llc dated September 15, 2021, submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Compounds, cleaning liquid	3	NA1993	II, III
Corrosive liquid, acidic, organic, n.o.s.	8	UN3265	II, III
Corrosive liquid, basic, inorganic, n.o.s. (Sodium metasilicate, Sodium hydroxide)	8	UN3266	II
Corrosive liquids, flammable, n.o.s.	8	UN2920	II, III
Corrosive liquids, toxic, n.o.s.	8	UN2922	II, III
Corrosive liquids, n.o.s.	8	Various	II, III
Environmentally hazardous sub-stances, liquid, n.o.s.	9	UN3082	III
Flammable liquid, toxic, corrosive, n.o.s.	3	UN3286	II
Flammable liquids, corrosive, n.o.s.	3	UN2924	II, III
Flammable liquids, n.o.s.	3	UN1993	II, III
Flammable liquids, toxic, n.o.s.	3	UN1992	II, III
Methanol	3	UN1230	II
Paint related material <i>including paint thinning, drying, removing, or reducing compound</i>	3	UN1263	II, III
Petroleum distillates, n.o.s. or Petroleum products, n.o.s.	3	UN1268	II, III
Toxic liquids, flammable, organic, n.o.s.	6.1	UN2929	II
Toxic liquids, organic, n.o.s.	6.1	UN2810	II, III
Trichloroethylene	6.1	UN1710	III

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Xylenes	3	UN1307	II, III

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Prescribed packagings are DOT Specification drums specified in 49 CFR Part 173 for the materials listed in paragraph 6 above.

b. TESTING: Each reused drum must meet the requirements of § 173.28.

c. OPERATIONAL CONTROLS:

(1) Product transfer must be through pumps mounted on the motor vehicle or with an injection system indirectly mounted to the motor vehicle.

(2) The drums must be attended at all times during unloading operations by a qualified person. For the purposes of this requirement, "attended" and "qualified" must have the meanings described in § 177.834(i)(3) and (4), respectively.

(3) Hoses may not be attached to container outlets during transportation.

(4) Drums may not be manifolded together.

8. SPECIAL PROVISIONS: The marking requirements in §§ 172.203(a) and 172.301(c) are waived.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) - "The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 B Immediate notice of certain hazardous materials incidents, and 171.16 B Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: MOOREBE/TG/KAH